

Order of Examination (Small Claims) – Nayeli Jimenez Camacho

Appearance required. The Court notes that the judgment creditor has not filed proof of service of the Order to Produce Statement of Assets and to Appear for Examination.

Continued at the request of Plaintiff from August 31, 2026, for oral argument. The Court notes that on September 4, 2026, Plaintiff filed a late 138-page opposition brief without leave of court. Any written opposition was to be filed and served at least nine court days before the original hearing date of August 31, 2026. (Code Civ. Proc., § 1005, subd. (b).)

Motion to Strike

Defendant Grassland Water District's motion to strike the prayer for punitive damages at page 8, line 21 of the complaint is GRANTED without leave to amend. Punitive damages are not recoverable against Defendant, a government entity. (Gov. Code, § 818.) Defendant is directed to prepare and submit a written order consistent with the Court's ruling for the Court's signature, as required by law and the California Rules of Court.

Demurrer to Complaint

Defendant Grassland Water District's general demurrer to the first cause of action on the ground it does not allege sufficient facts to constitute a cause of action for breach of contract is SUSTAINED. It is undisputed that Plaintiff does not allege in the complaint that he is a party to, or a third-party beneficiary of, the alleged contract between Defendant and the U.S. Department of the Interior (see paragraphs 9, 10, and 22 of the complaint) with the necessary standing to sue Defendant for breach of contract.

Defendant's unopposed general demurrer to the second cause of action for "breach of duty" on the ground it does not allege sufficient facts to constitute a cause of action is SUSTAINED without leave to amend. Breach of duty is an element of the tort of negligence and is not an independently recognized cause of action under California law. Further, all tort causes of action against public entities are based on statute. The Government Claims Act abolishes all common law tort liability against government entities. (Gov. Code, § 815; *Leon v. County of Riverside* (2023) 14 Cal.5th 910, 918.)

Defendant's general demurrer to the third cause of action for negligence on the ground it does not allege sufficient facts to constitute a cause of action is SUSTAINED without leave to amend. Public entities are not subject to common law tort liability.

Defendant's general demurrer to the entire complaint on the ground it does not allege sufficient facts to constitute a cause of action against Plaintiff is SUSTAINED. As stated above, public entities are not subject to common law tort liability and the complaint does not specifically identify the grounds for statutory liability against Defendant.

Having briefly reviewed Plaintiff's untimely 138-page opposition, the Court is uncertain Plaintiff understands Defendant's arguments and the Court's tentative ruling regarding pleading requirements under California law for stating a cause of action against a government entity. Nonetheless, the Court grants Plaintiff's request for an opportunity to file a first amended complaint. Plaintiff is granted leave to file an amended complaint within thirty (30) days of notice of ruling.

Defendant as the prevailing party is directed to prepare and submit a written order consistent with the Court's ruling for the Court's signature, as required by law and the California Rules of Court.

26CV-03965 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04050 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04259 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04272 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04366 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Motion to Quash Service of Summons

Appearance required.